

Scrutiny Defects Raised

Diary No : 0710120002512018
Petitioner : DAIMLER FINANCIAL SERVICES PVT. LTD.
Respondent : SAINOV SPIRITS PRIVATE LIMITED

Serial No.	Description	Comments
1	Whether Petitioner/aplication/appellant is entitled to and have the requisite qualification to file the petition e.g. Under section 241 and 242 of the Companies Act, 2013 in accordance with section 244 of the Act & attached documentry proof of entitlement?	
2	Whether the petitioner/application/appeal/reply has been signed at the foot of each page by all the petitioner /applicant/appellant/respondent and their name (s) has also been mentioned?	
3	Whether name of the petitioner/applicant/appellant/respondent complete address viz the name of the road ,street.lane and Municipal Division or Ward Municipal Door and other number of the house; the name of the town or village; the post office, postal district and PIN Code has been mentioned in the petition/application/appeal/reply?	
4	Whether fax number,mobile number, valid email address of the petitioner/applicant/appellant/respondent have been mentioned?	
5	Whether in every interlineations,eraser or correction or deletion in petition/application/appeal/document/repl y has been initialed by the party or his authorized representative?	

6	Whether affidavits (Form No NCLT 6) verifying the petition/application/appeal/reply from all the petitioner/applicant/appellant/respondent drawn on non-judicial stamp paper of requisite value duly attested by Notary Public/Oath Commissioner have been filed?	
7	Whether full name,parentage,age,description of each party,date,address and in case a party sues oe being sued in a representative character, has been set out in accordance to rule 20 (5) of NCLT Rules,2016?	
8	Whether petition/application/appeal/reply has been drawn in prescribed form form as per Annexure 'A' of NCLT,Rules,2016 with stipulated fee given in the schedule of these rules? The fee is to be paid by Online	
9	Whether documents accompanied to petition/application/appeal/reply have been duly certified by the authorized representative or advocate filing the petition or application or appeal?	
10	Whether the accompanied documents to the petition/application/appeal/reply has been verified from the originals and are in line with the provisions of Rule 23 NCLT,Rules,2016? The original should be brought before the Deputy Registrar for verification?	
11	Whether petition/application/appeal/reply has been filed in three authenticated copies and delivered to the opposite party?	
12	Whether all relevant enclosures to the petition/application/appeal/reply have been attached as per the annexure 'B' of NCLT rules , 2016?	
13	Whether annexure to the petition /application/appeal/reply has been numbered serially?	

14	The Adjudicating Authority on finding application complete in all respect shall, within fourteen days of the receipt of the application by an order admit the application and such order to be communicated to the financial creditor and the corporate debtor. Date of admission is the date of initiation Corporate Insolvency Resolution Process (CIRP).	
15	Within 14th days of initiation of CIRP Adjudicating Authority shall appoint Interim Insolvency Resolution Professional.	checj1
16	Every correspondence received from Committee Of Creditors/IRP/RP is required to be placed before the Bench immediately.	check2
17	Whether the matter is within limitation as per the provisions of Limitation Act, 1963	
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19	Whether the application has been filed as per the territorial jurisdiction conferred in section 60 of IBC 2016.	
20	Whether the application has been filed as per the territorial jurisdiction conferred in section 60 of IBC 2016.	
21	Whether the application is in form- 1 duly filled all five parts of the form (u/s 7 of IBC & rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) and accompanied with the fee prescribed under the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	
22	Whether the application is in form- 1 duly filled all five parts of the form (u/s 7 of IBC & rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) and accompanied with the fee prescribed under the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	
23	Whether application has been annexed with annexures I to IV as given with form-1 as per section 7 of IBC and rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	

24	(a) Form-1 as per section 7 of IBC and rule 4 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016 alongwith annexures I to IV to the form -1	
25	(b) Record of the default recorded with the information utility or such other record or evidence of default.	
26	(c) Proposal of resolution professional to act as an interim resolution professional and enclosed form-2 duly signed by proposed resolution professional (under rule 9 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	
27	(d) Any other information as may be specified by the Board.	
28	Whether applicant has rectified defects within one week of the date of receipt of such notice from the adjudicating Authority.	
29	Whether the application is complete in following manner:	
30	(a) The application made under section 7 (2) is complete;	
31	(b) There is no disciplinary proceeding pending against any resolution professional proposed under section 7 (2).	
32	Whether the financial creditor has dispatched copy of application filed with adjudicating authority to the registered office of the corporate debtor (under rule 4 (3) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016).	
33	The Adjudicating Authority shall reject the application if the defects/facts intimated to the applicant have not been removed after seven days of the notice.	